

NON-DISCLOSURE AGREEMENT

BETWEEN

THE NATIONAL CENTER FOR DEFENSE MANUFACTURING AND MACHINING

AND

(Vendor Name)

This Non-Disclosure Agreement ("Agreement"), is made by and between THE NATIONAL CENTER FOR DEFENSE MANUFACTURING AND MACHINING ("NCDMM"), having its place of business at 699 Scalp Avenue, Johnstown, PA 15904 and _____,

(Vendor Name)

hereby known as "Vendor", having its place of business at _____.

(Business Address)

WHEREAS, NCDMM and Vendor desire to disclose and exchange certain Proprietary Information, as herein defined, and ideas relating to Manufacturing Processes for the purpose of various NCDMM Programs and Projects ("Purpose"); and

WHEREAS, NCDMM and Vendor consider this information proprietary and extremely sensitive and confidential; and

WHEREAS, NCDMM and Vendor each represent that disclosure of such Proprietary Information would cause irreparable injury to its interests.

NOW, THEREFORE, in consideration of these premises and of the mutual promises and covenants contained herein, NCDMM and Vendor agree that in the event either party transmits to the other party any Proprietary Information, and in the event the parties jointly develop any information, in either case claimed to be proprietary, the below conditions will apply.

1. **DEFINITIONS**

As used in this Agreement, the party disclosing Proprietary Information shall be referred to as the "furnishing party" and the party receiving such Proprietary Information shall be referred to as the "receiving party".

"Proprietary Information," shall mean all trade secrets or confidential or proprietary information designated as such in writing by the furnishing party, whether by letter or by the use of an appropriate stamp or legend indicating the proprietary nature of such information, prior to or at the time any such trade secret or confidential or proprietary information is disclosed by the furnishing party to the receiving party. Notwithstanding the foregoing, information which is orally or visually disclosed to the receiving party by the furnishing party shall constitute Proprietary Information for thirty (30) days after its disclosure, and thereafter shall remain Proprietary Information only if the furnishing party, within thirty (30) days after such disclosure, delivers to the receiving party a written document or documents describing or summarizing such Proprietary Information and referencing the place and date of such oral, visual, or written disclosure and the names of the representatives of the receiving party to whom such disclosure was made. In addition, the term "Proprietary Information" shall be deemed to include any information obtained by examination, testing, visual inspection, or analysis of any Proprietary Information, including without limitation, scientific, business or financial data, know-how, formulae, processes, designs, sketches, photographs, plans, drawings, specifications, sample reports, models, customer lists, price lists, studies, findings, computer software, inventions, or ideas.

Proprietary Information also includes analyses, compilations, studies, notes and other material prepared by or in the possession or control of the receiving party which contain or otherwise reflect or are generated from any Proprietary Information.

2. **DESIGNATED REPRESENTATIVES**

The parties' representatives for transmittal and receipt of Proprietary Information are:

For NCDMM:

Name

Title

Address

For VENDOR:

Name

Title

Address

Any change in the designated representative of either party shall be communicated to the other in writing. However, all properly marked Proprietary Information exchanged hereunder shall be afforded the protection of this Agreement even if not furnished to the points of contact listed above.

3. **TERM AND TERMINATION; SURVIVAL OF OBLIGATIONS**

This Agreement shall be effective _____, upon execution of
(Start Date/Year to End Date/Year)
the Agreement by both parties. Either party may terminate this Agreement upon thirty (30) days' prior written notice to the other party.

The rights and obligations of the parties as set forth in this Agreement restricting disclosure and use of Proprietary Information shall survive indefinitely regardless of the expiration, termination, invalidation, or cancellation of this Agreement unless the parties specifically agree otherwise in a writing signed by an authorized representative of each party.

Upon termination, expiration, cancellation, or invalidation of this Agreement or upon the furnishing party's written request at any time, the receiving party shall promptly return all Proprietary Information disclosed hereunder in accordance with Section 5 hereof.

4. **PROTECTION**

In consideration of the disclosure of Proprietary Information by the furnishing party, the receiving party undertakes to the furnishing party that it shall:

- (i) use the Proprietary Information only for the Purpose and only during the term of this Agreement;

- (ii) treat and safeguard as private and confidential all of the Proprietary Information with the same degree of care that the receiving party uses to prevent disclosure, publication, or dissemination of its own proprietary or confidential information, but in any event, no less than a reasonable degree of care;
- (iii) ensure proper and secure access and storage of all Proprietary Information;
- (iv) not at any time without the prior written consent of the furnishing party, disclose or reveal the Proprietary Information to any other person or party whatsoever, other than employees of the receiving party who are in each case required in the course of their duties to receive and consider the same for the Purpose and who shall be made aware of the obligations of the receiving party under this Agreement and shall be required by the receiving party to observe the same restrictions on the use of the Proprietary Information;
- (v) not make any whole or partial copies of the other party's Proprietary Information, except that the receiving party may make only a limited number of copies only to the extent absolutely necessary to complete the Purpose and any such copies must fully reproduce the restrictive legends and be returned as required by this Agreement; and
- (vi) will, upon the request by the other party hereto, or upon termination, expiration, invalidation, or cancellation of this Agreement, return all such Proprietary Information, and any notes or memoranda of conversations relating thereto, including without limitation any and all copies thereof and any and all documents, drawings, or models which have been received or derived by the receiving party as part or as a result of the receiving party's evaluation hereunder and any and all copies thereof. Notwithstanding the foregoing, the receiving party shall be entitled to retain one copy of all Proprietary Information in the files of its legal counsel (with access limited solely to legal counsel) for future dispute resolution purposes only.

5. **EXCEPTIONS**

The obligations of confidentiality contained herein shall not apply to any Proprietary Information which the receiving party can show:

- (i) was in the public domain at the time of transmission, use or disclosure, or becomes part of the public domain without the receiving party or its representatives having violated the terms of this Agreement;
- (ii) was known and can be shown to have been known by the receiving party at the time of transmission;
- (iii) is disclosed with the written approval of the furnishing party;
- (iv) is independently and can be shown to have been independently developed by the receiving party;
- (v) becomes known to the receiving party from a source other than the furnishing party without breach of this Agreement by the receiving party; or
- (vi) is the subject of a subpoena or demand for production of documents in connection with any suit, arbitration proceeding, administrative procedure or before any governmental agency. In such event, the receiving party shall promptly notify the furnishing party and shall cooperate with the furnishing party in the furnishing party's attempt to protect the confidentiality of its Proprietary Information, such as by the furnishing party seeking a protective order from a court of competent jurisdiction.

6. INTELLECTUAL PROPERTY RIGHTS

Neither the disclosure of Proprietary Information or anything herein contained shall be construed as granting either expressly or by implication, estoppel, or otherwise a license, title, or other right to the receiving party under any idea, invention, know-how, patent, trademark, or copyright or any other Proprietary Information now or hereinafter owned or controlled by the furnishing party and/or owned or controlled by any third party.

7. WARRANTY

Each party warrants that it has the unqualified right to transmit and otherwise dispose of the Proprietary Information that it transmits under this Agreement. THERE ARE NO OTHER WARRANTIES, WHETHER WRITTEN OR ORAL, EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE OR USE AND WARRANTIES ARISING FROM COURSE OF PERFORMANCE, DEALING, USAGE OR TRADE, ALL OF WHICH ARE EXPRESSLY DISCLAIMED, EVEN IF THE FURNISHING PARTY HAS BEEN MADE AWARE OF THE PURPOSE; WARRANTIES AGAINST INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF THIRD PARTIES ARE EXPRESSLY DISCLAIMED EVEN IF THE FURNISHING PARTY HAS BEEN ADVISED OF ANY SUCH INFRINGEMENT.

8. INDEPENDENT CONTRACTORS

This Agreement shall relate only to the Purpose and to no other effort undertaken by NCDMM and VENDOR jointly or separately. It shall not constitute, create, give effect to, or otherwise be construed as a joint venture, pooling arrangement, partnership, or formal business organization of any kind. In particular, nothing in this Agreement shall grant to either party the right to make any commitments of any kind for or on behalf of the other party without that party's prior express written authority.

9. EXPENSES; LIMITATIONS

Nothing in this Agreement shall be construed as providing for the sharing of profits or losses arising out of activities of either or both of the parties. Neither party will be liable to the other for any costs, expenses, risks, or liabilities arising out of the other party's activities in connection with this Agreement. Neither party shall be liable for any incidental, consequential, special, or punitive damages.

10. GOVERNMENTAL SUBMISSIONS/DATA RIGHTS

Any such Proprietary Information may be incorporated in any solicited or unsolicited proposal submissions to the U.S. Government and, if so incorporated, shall be marked with a legend as provided in FAR 52.215-1(e).

The party originating Proprietary Information may enter into negotiations for predetermination of data rights with the U.S. Government with respect to said Proprietary Information as permitted under DFAR 252.227-7017.

11. EXPORT CONTROLS

Each of the parties agrees not to export, directly or indirectly, any of said Proprietary Information acquired from the other under this Agreement, or any products made utilizing any such Proprietary Information, to any country for which the U.S. Government or any agency thereof at the time of export requires an export license or other governmental approval, without first obtaining such license or approval.

12. GOVERNING LAW

This Agreement shall be exclusively governed by and construed in accordance with the laws of the Commonwealth of Pennsylvania, excluding its choice of law rules. The parties hereby irrevocably consent and submit to the exclusive jurisdiction and venue of any state or federal court of Pennsylvania over any

suit, action, or proceeding arising out of or relating to this Agreement and hereby irrevocably waive any objection which they may now or hereafter have to the venue of such suit, action, or proceeding.

13. REMEDIES AT LAW

Each party recognizes that its remedy at law for this Agreement's breach would necessarily be inadequate and incapable of reasonable calculation, and they thus stipulate that in the event of any such breach, they shall be entitled to appropriate equitable relief or specific performance.

14. CONFLICT WITH LEGENDS OR STATEMENTS

The provisions of this Agreement shall control and take precedence over any inconsistent or conflicting language contained in the proprietary or restrictive legends or statements associated with any particular Proprietary Information furnished under this Agreement.

15. SEVERABILITY

In the event that one or more of the provisions of this Agreement are rendered void or unenforceable, no other provision shall be affected. If any provision is found too broad to be effected, that provision shall be limited and enforced to the fullest extent possible.

16. ASSIGNMENT

Neither this Agreement, nor any interest herein, may be assigned, in whole or in part, by either party without the prior written consent of the other party hereto, except that without securing such prior consent, either party shall have the right to assign this Agreement to any successor which results from a merger, consolidation, spin-off, or the acquisition of substantially all of the entire business and assets of that party relating to the subject matter of this Agreement, provided, however, that such successor shall have expressly assumed all of the obligations and liabilities of such party under this Agreement, and such successor is not a competitor to the other party on the program to which this Agreement relates.

17. NOTICES

Any notices required to be given hereunder shall be in writing and shall be properly given if delivered by hand or sent by pre-paid, first-class post to:

If to NCDMM: Gene Berkebile
 Vice President and CFO
 699 Scalp Avenue, Johnstown, PA 15904
 (814) 385-3907 gene.berkebile@ncdmm.org

If to VENDOR:

Name

Title

Business Address

Phone

Email Address

18. NON-WAIVER

Neither party shall be deemed to have waived any of its rights hereunder, under any other agreement or instrument, or under law, except in a writing signed by an authorized representative of that party. No delay or omissions on the part of either party in exercising any right or remedy shall operate as a waiver thereof, and a written waiver on any one occasion shall not be construed as a bar or waiver of any right or remedy on any future occasion.

19. ENTIRE AGREEMENT; AMENDMENT

This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof and cannot be amended, modified, or changed except by the written consent of both parties.

IN WITNESS WHEREOF, the parties have executed this Agreement by their duly authorized agents to be made effective as of the date stated above.

Signed for and on behalf of:

**THE NATIONAL CENTER FOR DEFENSE
MANUFACTURING AND MACHINING**

Name

Print Name

Title

Date

Signed for and on behalf of:

Vendor Name

Name

Print Name

Title

Date